

STRUCTURE AND FUNCTIONS OF GOVERNMENT IN PAKISTAN

Structure of government in Pakistan

The structure of government in Pakistan is based on the Constitution of Pakistan, which outlines the system of governance as a federal parliamentary republic. The government is organized into three main branches: the Executive, the Legislature, and the Judiciary. Pakistan also has a federal structure, with a division of powers between the central (federal) government and the provincial governments.

1. The Executive

- **President:** The President of Pakistan is the ceremonial head of state with some constitutional powers. The President is elected by an electoral college, which includes members of the Parliament and the provincial assemblies. The President serves a five-year term. Although largely a ceremonial role, the President has specific powers, such as appointing key officials, and can sometimes play a more active role during political crises.
- **Prime Minister:** The Prime Minister is the head of government and holds the most executive authority. The Prime Minister is elected by the National Assembly and is responsible for running the government, implementing laws, and overseeing the federal cabinet. The Prime Minister leads the executive branch and represents the government both domestically and internationally.
- **Federal Cabinet:** The Federal Cabinet consists of ministers appointed by the Prime Minister. These ministers are responsible for various government departments and agencies, such as finance, defense, foreign affairs, and health. The cabinet plays a crucial role in policymaking and administration.
- **Provincial Governments:** Pakistan is divided into four provinces (Punjab, Sindh, Khyber Pakhtunkhwa, and Balochistan), each with its own government. Each province has a Chief Minister, who acts as the head of the provincial government, and a provincial assembly that handles local legislative matters. Provinces also have their own cabinets and ministers who manage provincial departments.

2. The Legislature

Pakistan has a bicameral legislature, meaning it consists of two houses: the National Assembly and the Senate. Together, these two houses form the

Parliament (Majlis-e-Shoora) of Pakistan.

- **National Assembly (Lower House):** The National Assembly is the directly elected lower house of Parliament. It consists of members (MNAs) elected by the people through general elections, which are held every five years. The National Assembly has 336 members, with seats reserved for women and minorities. The National Assembly plays a key role in passing legislation, approving the budget, and electing the Prime Minister.
- **Senate (Upper House):** The Senate represents the provinces and territories of Pakistan, ensuring equal representation for all federating units regardless of population size. It consists of 100 members, with seats allocated to each province, the Federally Administered Tribal Areas (FATA), and the Islamabad Capital Territory (ICT). Senators are elected by the provincial assemblies and serve for six years, with half of the Senate being re-elected every three years. The Senate plays a key role in legislation, especially in matters affecting the provinces.

3. The Judiciary

The Judiciary is responsible for interpreting and applying the law and ensuring justice. It operates independently from the Executive and Legislature and plays a vital role in maintaining the rule of law in Pakistan.

- **Supreme Court:** The Supreme Court of Pakistan is the highest court in the country. It has original, appellate, and advisory jurisdiction, meaning it can hear cases directly, review lower court decisions, and advise the government on legal matters. The Chief Justice of Pakistan heads the Supreme Court.
- **High Courts:** Each province has its own High Court, which deals with legal matters at the provincial level. There is also a High Court for the Islamabad Capital Territory. High Courts have the power to hear appeals from lower courts and review administrative actions by the government.
- **Lower Courts:** These include District and Sessions Courts, which handle civil and criminal cases at the district level. There are also specialized courts for family matters, consumer rights, and other specific legal issues.
- **Federal Shariat Court:** This court ensures that laws in Pakistan conform to Islamic principles. It has the authority to review and strike down laws that it deems inconsistent with Islamic teachings.

4. Provincial and Local Governments

Pakistan's federal structure means that powers and responsibilities are divided between the central government and provincial governments. Provincial governments have authority over matters such as education, health, and local infrastructure. Provinces are further divided into divisions, districts, tehsils, and union councils, each with its own administrative structure.

- **Local Government:** Local governments operate at the district, tehsil, and union council levels. Local bodies, including elected councils and mayors or chairpersons, handle community services such as water supply, sanitation, and local policing. Local governments vary in structure and function across provinces and are established by provincial laws.

5. Other Institutions

- **Election Commission of Pakistan (ECP):** The ECP is an independent body responsible for conducting elections and ensuring that they are free, fair, and transparent.
- **National Accountability Bureau (NAB):** NAB is responsible for investigating and prosecuting corruption and economic crimes in Pakistan. It operates independently from the government.
- **Armed Forces:** The military in Pakistan plays a significant role in national defense and social development.

These structures work together to form the government of Pakistan, with a balance of powers between the federal and provincial levels, as well as a system of checks and balances among the Executive, Legislature, and Judiciary.

Functions of government in Pakistan

The government of Pakistan, like most governments, performs various functions to maintain law and order, provide services to citizens, and ensure the well-being and development of the country. These functions are divided across the different branches of government—executive, legislative, and judicial—as well as between the federal and provincial governments. Here is an overview of the key functions of the government in Pakistan:

1. Legislative Functions

- **Lawmaking:** The primary function of the Parliament (Majlis-e-Shoora) is to make laws for the country. This includes drafting, debating, and passing legislation that governs various aspects of society, including criminal laws, economic regulations, and social policies.

- **Amendment of the Constitution:** Parliament has the power to amend the Constitution, though this requires a two-thirds majority in both the National Assembly and the Senate.
- **Budget Approval:** The Parliament is responsible for reviewing and approving the annual budget, which outlines government expenditures and revenues. This process involves debates and discussions on fiscal policies, taxation, and public spending.
- **Representation of Citizens:** Elected representatives in the National Assembly and Senate represent the interests of the people and the provinces, respectively. They act as a bridge between the citizens and the government.
- **Oversight of the Executive:** Parliament monitors and holds the executive accountable through mechanisms like question hours, debates, and committees.

2. Executive Functions

- **Policy Implementation:** The executive branch, led by the Prime Minister and the federal cabinet, is responsible for implementing laws and policies passed by the Parliament. This includes executing development projects, managing public services, and enforcing laws.
- **Public Administration:** The government runs various departments and ministries (e.g., health, education, defense) that manage day-to-day public administration. This includes providing essential services, such as health care, education, infrastructure, and security.
- **Foreign Relations and Diplomacy:** The federal government, particularly the Ministry of Foreign Affairs, manages Pakistan's relations with other countries, engages in diplomacy, negotiates treaties, and represents Pakistan in international organizations (e.g., the United Nations).
- **National Defense:** The executive is responsible for the defense and security of the country, which includes maintaining and managing the armed forces (army, navy, and air force) and intelligence agencies.
- **Economic Management:** The government formulates and implements economic policies related to trade, industry, taxation, monetary policy, and employment. The Ministry of Finance plays a key role in managing the economy and public finances.
- **Public Order and Internal Security:** The government is responsible for maintaining law and order through the police and other law

enforcement agencies, as well as ensuring internal security and countering terrorism.

3. Judicial Functions

- **Interpretation and Application of Laws:** The judiciary interprets the laws passed by the legislature and ensures their application in accordance with the Constitution. Courts at various levels hear cases related to civil, criminal, and constitutional matters.
- **Dispute Resolution:** The judiciary resolves disputes between individuals, organizations, and the state. This includes civil litigation, criminal prosecution, and family law matters.
- **Protection of Fundamental Rights:** The judiciary plays a crucial role in protecting citizens' rights as enshrined in the Constitution. Individuals can approach the courts to challenge violations of their fundamental rights.
- **Judicial Review:** The judiciary has the power of judicial review, meaning it can examine the actions of the executive and legislative branches to ensure they are constitutional. The Supreme Court can strike down laws or executive actions that are found to be unconstitutional.
- **Ensuring Rule of Law:** By upholding legal standards, the judiciary ensures that the rule of law is maintained, and that no one is above the law, including government officials.

4. Provincial and Local Government Functions

- **Provincial Autonomy:** Under Pakistan's federal structure, provincial governments have significant autonomy over matters such as health, education, agriculture, local infrastructure, and law enforcement. Provincial assemblies legislate on these subjects and implement policies within their regions.
- **Local Governance and Service Delivery:** Local governments at the district, tehsil, and union council levels are responsible for providing community services, such as water supply, sanitation, local infrastructure, and waste management. They also manage local law and order and community policing.
- **Development Projects:** Both provincial and local governments are involved in planning and executing development projects, such as building schools, hospitals, roads, and other infrastructure to improve the quality of life in their regions.